Topic 3 — Parts, Articles & Schedules

Covers syllabus (click to expand)

Parts of Constitution | Important Parts (III, IV, IVA, IX, IXA (नगरपालिका), IXB (सहकारिता), XV, XVIII, XXI) | Important Articles (1–35 clause map; VP 63–71; High Courts 214–235) | Article 21 (अनुच्छेद 21) expanded-rights table | Article 51A duties table | Article Number–Subject Mapping | Schedules | First Schedule | Second Schedule | Third Schedule (Oaths & Affirmations) | Fourth Schedule | Fifth Schedule (5वीं अनुसूची) | Sixth Schedule (6वीं अनुसूची) | Fifth vs Sixth Schedule | Seventh Schedule (Union, State, Concurrent Lists) | Eighth Schedule (आठवीं अनुसूची) | Ninth Schedule (नौवीं अनुसूची) | Tenth Schedule | Eleventh Schedule | Twelfth Schedule

Sources baked in: Laxmikanth, Constitution of India text, India Code Constitution PDF, Drishti / PWOnlyIAS article maps, UPPCS Prelims PYQs 2018–2025, Ghatnachakra Parts/Articles/Schedules bank **Weight:** ★★★ — Part↔Subject NOT matched; Article↔subject (incl. VP / HC / AG); Schedule↔Subject; 8th Schedule languages; 11th=29 / 12th=18; Concurrent List items; 371-series States; Art. 21 expansions; 51A(a)–(k) **Last verified:** September 2026 — Ghatnachakra Parts/Articles/Schedules Extra Drill added **Current Affairs:** N/A (static structure) — watch only if a new language is added to 8th Schedule

Parts of the Constitution

- Constitution organised into **Parts** (now **25 Parts**, including IVA, IXA, IXB, XIVA).
- Original 1950: **22 Parts**; later amendments added Parts (e.g. IVA by 42nd; IX/IXA by 73rd/74th; IXB by 97th; XIVA by 42nd).
- **Part VII** repealed (States in Part B of First Schedule — historical).

Parts Master Table (learn once)

Part	Subject
I	The Union and its Territory
II	Citizenship
III	Fundamental Rights
IV	Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy
IVA	Fundamental Duties
V	The Union (President, VP, CoM, Parliament, AG, Union Judiciary structure)
VI	The States
VII	Repealed

Part	Subject
VIII	The Union Territories
IX	The Panchayats
IXA	The Municipalities
IXB	The Cooperative Societies
X	The Scheduled and Tribal Areas
XI	Relations between the Union and the States
XII	Finance, Property, Contracts and Suits
XIII	Trade, Commerce and Intercourse within India
XIV	Services under the Union and the States
XIVA	Tribunals
XV	Elections
XVI	Special Provisions relating to certain Classes
XVII	Official Language
XVIII	Emergency Provisions
XIX	Miscellaneous
XX	Amendment of the Constitution
XXI	Temporary, Transitional and Special Provisions (Arts. 371–371J; ex-370 teaching)
XXII	Short Title, Commencement, Authoritative Text, Repeals

High-yield Part facts

- **Part III** holds Fundamental Rights. **Part IV** holds DPSP. **Part IVA** holds Fundamental Duties (42nd Amendment).
- **Part IX** is Panchayats. **Part IXA** is Municipalities. **Part IXB** is Cooperative Societies.
- **Part X** covers Scheduled and Tribal Areas. **Part XI** covers Union–State relations.
- **Part XIVA** covers Tribunals. **Part XV** covers Elections. **Part XVIII** covers Emergency.
- The **Attorney General** sits under **Part V**, not under Part XIII.

PYQ — UPPCS Prelims 2025, Q24

Which pairs of Parts and subjects are NOT correctly matched?

1. Part IVA — Fundamental Duties
2. Part VI — States
3. Part XI — Municipalities

A. 1 and 2 B. Only 3 C. 2 and 3 D. Only 1

Show answer

Logic: Tests Part↔subject matching. Municipalities sit in Part **IXA**, not Part XI (Union–State relations). IVA and VI are correctly matched. **Ans: B — Only 3.** Municipalities = **Part IXA**; Part XI = Union–State relations. Statements 1 and 2 are correct. Trap: parking Municipalities under Part XI because “local” sounds like Centre–State relations.

PYQ — UPPCS Prelims 2023, Q1

Which (Provision — Part) is NOT correctly matched?

A. UTs — Part VIII B. Scheduled and Tribal Areas — Part X C. Tribunals — Part XI D. Official Language — Part XVII

Show answer

Logic: Tribunals were added as Part **XIVA** (42nd). Part XI is only Union–State relations. UTs, Scheduled Areas and Official Language matches are standard. **Ans: C.** Tribunals = **Part XIVA**. Part XI = relations between the Union and the States. Trap: confusing XIVA with XI because both sit in the later Parts map.

PYQ — UPPCS Prelims 2020, Q110

Which is NOT correctly matched?

A. Fundamental Duties — Part IVA B. The States — Part VI C. Attorney General — Part XIII D. Services — Part XIV

Show answer

Logic: Attorney-General is Art. **76** under Part **V** (Union). Part XIII is Trade, Commerce and Intercourse — a classic wrong parking for AG. **Ans: C.** Attorney-General is under **Part V**; Part XIII = Trade, Commerce and Intercourse. Trap: AG sounds “legal services”, so candidates park him under XIV/XIII.

PYQ — UPPCS Prelims 2018, Q73

In which Part of the Constitution of India do we find the provisions relating to citizenship?

A. Part I B. Part II C. Part VII D. Part IX

Show answer

Logic: Citizenship is a standalone Part **II** (Arts. 5–11). Part I is only Union and Territory. **Ans: B — Part II.** Part I = Union and its Territory. Part VII is repealed. Part IX = Panchayats.

Important Parts (syllabus set — elaborated)

Part	Articles	What it contains
III	**12–35**	Fundamental Rights — justiciable; Art. 32 called the "heart and soul" by Ambedkar (अम्बेडकर)
IV	**36–51**	DPSP — **not** justiciable; fundamental in governance (Art. 37)
IVA	**51A**	Fundamental Duties — **42nd Amd, 1976**; **11** duties (10 original + **51A(k)** by **86th**)
IX	**243–243O**	Panchayats — **73rd Amd**; Gram Sabha (ग्राम सभा); 3-tier; SEC; **11th Schedule** (11वीं)
IXA	**243P–243ZG**	Municipalities — **74th Amd**; **12th Schedule** (12वीं)
IXB	**243ZH–243ZT**	Cooperative Societies — **97th Amd, 2011**
XV	**324–329**	Elections; Election Commission; adult suffrage (**326**); bar on court interference (**329**)
XVIII	**352–360**	National Emergency (**352**); State / President's Rule (**356**); Financial Emergency (**360**)
XXI	**369–392**	Temporary, Transitional & Special — **370** (J&K, now inoperative); **371–371J**

Also match: **V** Union · **VI** States · **VIII** UTs · **X** Scheduled & Tribal Areas · **XI** Union–State relations · **XIVA** Tribunals · **XVII** Official Language · **XX** Amendment.

Important Articles — number · subject · elaboration

Column tables remain for quick match. Articles 1–35 also carry clause-wise teaching below. Deep FR / Emergency / Judiciary chapters still come later for case law depth.

Part I–II — Union, Territory, Citizenship (Arts. 1–11)

Art.	Subject	Elaboration
1	Name and territory of the Union	India, that is Bharat, shall be a **Union of States**. Territory = States + UTs + such other territories as may be acquired.
2	Admission / establishment of new States	Parliament may by law admit new States into the Union or establish new States on such terms as it thinks fit.
3	Formation of new States; alteration of area, boundaries, name	Parliament may form a new State, increase or diminish area, alter boundaries or name. **President's recommendation** is needed. The State Legislature's view is **not binding**.
4	Laws under Arts. 2–3	Such laws may amend the First and Fourth Schedules and are **not** deemed amendments under **Art. 368**.

Art.	Subject	Elaboration
5	Citizenship at commencement	A person domiciled in India who was born in India, or either of whose parents was born in India, or who had been ordinarily resident for not less than five years, became a citizen on **26 Jan 1950**.
6	Rights of citizenship of certain persons who have migrated to India from Pakistan	Cut-off teaching: migrants before **19 July 1948** (and related domicile rules) vs those who came after and registered.
7	Rights of citizenship of certain migrants to Pakistan	A person who migrated to Pakistan after **1 March 1947** generally loses citizenship under Arts. 5–6, with a narrow return-and-resettle exception.
8	Rights of citizenship of certain persons of Indian origin residing outside India	Persons of Indian origin abroad may register as citizens on prescribed terms.
9	Persons voluntarily acquiring citizenship of a foreign State not to be citizens	Such a person **shall not** be a citizen by virtue of Arts. 5–8.
10	Continuance of the rights of citizenship	Citizenship continues subject to any law made by Parliament.
11	Parliament to regulate the right of citizenship by law	Parliament may make any provision on acquisition, termination and related matters — basis of the **Citizenship Act, 1955**.

Clause teaching — Arts. 1–4 (high-yield)

- **Article 1(1)** says India, that is Bharat, shall be a **Union of States**.
- **Article 1(2)** says the States and their territories shall be as specified in the **First Schedule**.
- **Article 1(3)** defines the territory of India as the territories of the States, the Union Territories specified in the First Schedule, and such other territories as may be acquired.
- The word **Union** (not federation) is taught as an **indestructible Union of destructible States**.
- **Article 2** covers admission or establishment of **new** States into the Union.
- **Article 3** covers formation of a new State by separation, uniting States or parts of States, increasing or diminishing area, and altering boundaries or name.
- A Bill under Article 3 needs the **President's recommendation**. The President refers it to the concerned State Legislature for its views within a prescribed period. Those views do **not** bind Parliament.
- **Article 4** says laws under Arts. 2–3 may amend the First and Fourth Schedules and do **not** attract the Art. 368 amendment procedure.

Clause teaching — Arts. 5–11 (citizenship cluster)

- **Article 5** fixed citizenship **at the commencement** of the Constitution (26 Jan 1950).
- **Articles 6 and 7** deal with migration between India and Pakistan around Partition, with the classic cut-off date **19 July 1948** in Art. 6 teaching.
- **Article 8** covers persons of Indian origin residing outside India.

- **Article 9** bars dual citizenship through Arts. 5–8 if a person voluntarily acquires foreign citizenship.
- **Article 10** continues citizenship subject to law.
- **Article 11** gives **Parliament** full power to regulate citizenship by law. Detailed acquisition and termination rules live in the **Citizenship Act, 1955**, not in the Constitution's short Part II text.

Part III — Fundamental Rights (Arts. 12–35) — full clause map

Art.	Subject	Quick label
12	Definition of **State**	Who is bound by FR
13	Laws inconsistent with FR	Voidness + what "law" means
14–18	Right to Equality	Equality cluster
19–22	Right to Freedom	Six freedoms + conviction + life + arrest
23–24	Right against Exploitation	Trafficking, begar (बेगार), child labour
25–28	Freedom of Religion	Conscience to religious instruction
29–30	Cultural & Educational Rights	Sections / minorities
31A–31C	Saving of certain laws	Estates / 9th Schedule (9वीं अनुसूची) / DPSP link
32–35	Constitutional remedies & Parliament's power	Writs; armed forces; martial law; legislation

Article 12 — Definition of State

- **Article 12** defines **State** for Part III.
- It includes the Government and Parliament of India.
- It includes the Government and the Legislature of each State.
- It includes all local authorities within the territory of India.
- It includes **other authorities** within India or under the control of the Government of India.
- Fundamental Rights primarily bind this "State". Courts use the instrumentality / agency tests to decide whether a body is an "other authority".

Article 13 — Laws inconsistent with Fundamental Rights

- **Article 13(1)** says pre-Constitution laws inconsistent with Part III are **void to the extent of inconsistency**.
- **Article 13(2)** says the State shall **not** make any law that takes away or abridges rights conferred by Part III. Any such law is void to that extent.
- **Article 13(3)** defines **law** to include ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law.
- **Article 13(4)** (after the **24th Amendment**) says nothing in this article applies to any amendment of the Constitution under **Article 368**.
- Classic trap: a constitutional amendment is **not** treated as ordinary "law" under Art. 13 after the 24th Amendment line (contrast the earlier *Golaknath* (गोलकनाथ 1967) reading (रीडिंग)).

Article 14 — Equality before law

- **Article 14** says the State shall not deny to **any person** equality before the law or the equal protection of the laws within the territory of India.
- **Equality before law** is the British rule-of-law idea (no special privilege).
- **Equal protection of the laws** is the American idea (like should be treated alike).
- Reasonable classification is allowed. Class legislation is forbidden.
- Article 14 is available to **citizens and non-citizens**.

Article 15 — Prohibition (प्रतिषेध) of discrimination (clause-wise)

Clause	What it does
15(1)	State shall not discriminate against any **citizen** only on religion, race, caste, sex, place of birth, or any of them.
15(2)	No citizen shall face disability on those grounds regarding access to shops, restaurants, hotels, places of public entertainment, or use of wells, tanks, bathing ghats, roads and places of public resort (State-funded or for general public). This reaches certain **private** discrimination in public spaces.
15(3)	Special provisions for **women and children** are allowed.
15(4)	Special provisions for advancement of **SEBCs / SCs / STs** are allowed (**1st Amendment**, after *Champakam Dorairajan*).
15(5)	Special provisions for SEBC/SC/ST admission to educational institutions, including private aided/unaided ones, **except** minority institutions under Art. 30(1) (**93rd Amendment**).
15(6)	Special provisions for **EWS** (other than classes in 15(4)/(5)), including education reservation up to **10%** (**103rd Amendment**).

- Grounds in 15(1)/(2) do **not** include language or descent (those appear elsewhere, e.g. Art. 16 for descent/residence).
- **15(4)** is the classic reservation-enabling clause for SEBC/SC/ST advancement.
- **15(6)** is the EWS education route. Pair it with **16(6)** for public employment.

Article 16 — Equality of opportunity in public employment (clause-wise)

Clause	What it does
16(1)	Equality of opportunity for all **citizens** in employment or appointment under the State.
16(2)	No citizen shall be discriminated against in State employment only on religion, race, caste, sex, **descent**, place of birth, **residence**, or any of them.
16(3)	Parliament may prescribe residence requirements for certain classes of State employment.
16(4)	State may reserve posts for any backward class not adequately represented in State services.
16(4A)	Reservation in **promotion** for SCs/STs (**77th Amendment** line).
16(4B)	Carry-forward of unfilled reserved vacancies (**81st** / related teaching).

Clause	What it does
16(5)	Religious denomination offices / connected institutions may be reserved for members of that denomination.
16(6)	EWS reservation in public employment (**103rd Amendment**).

- Article 16 is for **citizens** and for **public employment**, unlike Art. 14 which covers any person.
- **Residence** as a ground appears in 16(2); Parliament may still prescribe residence under 16(3).

Article 17 — Abolition of Untouchability

- Untouchability is abolished and its practice in any form is forbidden.
- Enforcement of any disability arising out of untouchability is a **punishable offence**.
- The Protection of Civil Rights Act, 1955 gives effect to this article.
- Article 17 also binds private persons in the classic teaching.

Article 18 — Abolition of titles

- **18(1)** says no title shall be conferred by the State except a military or academic distinction.
- **18(2)** says no citizen of India shall accept any title from a foreign State.
- **18(3)** and **18(4)** restrict foreign titles / presents for non-citizens holding office of profit and for citizens holding such office, without the President's consent where required.
- National awards such as **Bharat Ratna** (भारत रत्न) and **Padma** (पद्मा) awards are **not** "titles" in the Art. 18 sense (*Balaji Raghavan* line).

Article 19 — Six freedoms (citizens only)

Sub-clause	Freedom	Restriction clause
19(1)(a)	Freedom of speech and expression	**19(2)** — sovereignty, security, foreign relations, public order, decency/morality, contempt of court, defamation, incitement to offence
19(1)(b)	Assemble peaceably and without arms	**19(3)**
19(1)(c)	Form associations or unions or cooperative societies	**19(4)**
19(1)(d)	Move freely throughout India	**19(5)**
19(1)(e)	Reside and settle in any part of India	**19(5)**
19(1)(g)	Practise any profession, or carry on any occupation, trade or business	**19(6)**

- Original **19(1)(f)** (property) was deleted by the **44th Amendment**. Property is now a legal right under **Art. 300A**.

- All six surviving freedoms are available only to **citizens**.
- Restrictions must be **reasonable** and on the grounds listed in 19(2)–(6).

Article 20 — Protection in respect of conviction for offences

Clause	Rule	Teaching sentence
20(1)	No **ex post facto** criminal law	No person shall be convicted of an offence except for violation of a law in force at the time of the act. No greater penalty than what the law then provided.
20(2)	No **double jeopardy**	No person shall be prosecuted and punished for the same offence more than once.
20(3)	No **self-incrimination**	No person accused of an offence shall be compelled to be a witness against himself.

- Article 20 is available to **citizens and non-citizens**.
- It is a conviction / criminal-process protection. Do not park torture, privacy or livelihood only under Art. 20 — those sit mainly under **Art. 21**.

Article 21 — Protection of life and personal liberty

- Text: *No person shall be deprived of his life or personal liberty except according to procedure established by law.*
- Available to **citizens and foreigners**.
- *A.K. Gopalan* read this narrowly. *Maneka Gandhi (गांधी)* (1978) held that the procedure must be **fair, just and reasonable**, and linked Arts. **14, 19 and 21** (golden triangle).
- "Life" is not mere animal existence. It includes living with human dignity (*Francis Coralie Mullin*).

Table — Rights read into Article 21 (high-yield map)

Right read into Art. 21	Leading case / note
Fair, just and reasonable procedure; travel abroad	*Maneka Gandhi* (1978)
Speedy trial; free legal aid (linked teaching)	*Hussainara Khatoon*
Live with human dignity	*Francis Coralie Mullin*
Livelihood	*Olga Tellis*
Against handcuffing / inhuman treatment (custody)	*Prem Shankar Shukla* / *D.K. Basu* line
Education (before Art. 21A)	*Mohini Jain* / *Unni Krishnan* → later **21A**
Health and emergency medical care	*Paschim Banga Khet Mazdoor Samity* line
Shelter / housing dignity themes	Court expansion after *Olga Tellis* line
Clean environment (पर्यावरण) / clean air	Environment cases (*Subhash Kumar*, *Murli Deora* line)
Food / against starvation themes	*PUCL* line

Right read into Art. 21	Leading case / note
Against sexual harassment at workplace	*Vishaka* guidelines
Gender identity of transgender persons	*NALSA* (2014)
Privacy as a Fundamental Right	*K.S. Puttaswamy* (2017)
Die with dignity / passive euthanasia framework	*Common Cause* (2018)
Choose life partner / personal autonomy themes	Later autonomy cases

- **Article 21A** is a separate FR for free and compulsory education of children aged **6–14** (**86th Amendment, 2002**; RTE Act, 2009). Do not treat every education question as only Art. 21 after 21A was inserted.

Article 22 — Protection against arrest and detention

Block	Clauses	What it teaches
Ordinary arrest	**22(1)–(2)**	Person arrested must be informed of grounds as soon as may be; right to consult and be defended by a legal practitioner of choice; produce before the nearest magistrate within **24 hours** (excluding journey time); no further detention without magistrate's authority.
Carve-out	**22(3)**	22(1)–(2) do **not** apply to an enemy alien or to a person detained under a **preventive detention** law.
Preventive detention	**22(4)–(7)**	Detention beyond **three months** needs an **Advisory Board** opinion (High Court judges / qualified persons), unless Parliament by law fixes the maximum period and procedure under 22(7). Parliament may prescribe the circumstances and classes of cases, and the maximum period of detention.

- Ordinary arrest rights and preventive-detention rules are **two different codes** inside one article.
- Classic trap: "24 hours before magistrate" is for ordinary arrest, not the full story of preventive detention.

Articles 23–24 — Right against Exploitation

- **Article 23(1)** prohibits traffic in human beings, *begar* (बेगार), and other similar forms of forced labour (बलात् श्रम). Contravention is a punishable offence.
- **Article 23(2)** lets the State impose compulsory service for public purposes, without discrimination only on religion, race, caste or class.
- **Article 24** says no child below **fourteen years** shall work in any factory (फैक्टरी) or mine or engage in any other hazardous employment.
- Do not park untouchability here. Untouchability is **Article 17** under equality.

Articles 25–28 — Freedom of religion (clause highlights)

- **Article 25(1)** guarantees freedom of conscience and the right freely to profess, practise and **propagate** religion, subject to public order, morality and health, and to the other Part III provisions.

- **Article 25(2)** lets the State regulate or restrict any economic, financial, political or other secular activity associated with religious practice, and provide for social welfare and reform (including throwing open Hindu religious institutions of a public character to all classes and sections of Hindus). The Sikh wearing of *kirpan* is saved by explanation.
- **Article 26** gives every religious denomination (or section) rights to establish and maintain institutions for religious and charitable purposes, manage its own affairs in matters of religion, own and acquire movable and immovable property, and administer such property in accordance with law.
- **Article 27** says no person shall be compelled to pay any **tax** whose proceeds are specifically appropriated for payment of expenses for the promotion or maintenance of any particular religion or denomination. A regulatory **fee** is treated differently in teaching.
- **Article 28(1)** bars religious instruction in institutions wholly maintained out of State funds.
- **Article 28(2)** saves institutions administered by the State but established under an endowment or trust requiring religious instruction.
- **Article 28(3)** protects a person attending a State-recognised or State-aided institution from being required to take part in religious instruction or worship without consent (guardian's consent if a minor).

Articles 29–30 — Cultural and educational rights

- **Article 29(1)** says any section of citizens residing in India having a distinct language, script (लिपि) or culture of its own shall have the right to conserve the same.
- **Article 29(2)** says no citizen shall be denied admission into any educational institution maintained by the State or receiving State aid only on religion, race, caste, language, or any of them.
- **Article 30(1)** says all minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.
- **Article 30(1A)** (after the 44th) deals with compensation when the State acquires property of a minority educational institution.
- **Article 30(2)** says the State shall not discriminate against any educational institution in granting aid on the ground that it is under minority management.
- Trap: **29** speaks of **any section** of citizens. **30** speaks of **minorities**.

Articles 31A, 31B, 31C — Saving of certain laws

- **Article 31A** saves laws for acquisition of estates and related agrarian reform measures from being void under Arts. **14** and **19**.
- **Article 31B** validates Acts and Regulations placed in the **Ninth Schedule**. Later, *I.R. Coelho* held that post-**24 April 1973** insertions can be tested on **Basic Structure**.
- **Article 31C** saves laws giving effect to the policy in **Art. 39(b)** and **39(c)** from Arts. 14 and 19 (historical wider 42nd text was cut back in the *Kesavananda (केशवानंद भारती 1973) / Minerva Mills* line).

Article 32 — Remedies for enforcement of Fundamental Rights

- **Article 32(1)** guarantees the right to move the Supreme Court by appropriate proceedings for enforcement of Part III rights.

- **Article 32(2)** empowers the Supreme Court to issue directions, orders or writs, including **habeas corpus (बन्दी प्रत्यक्षीकरण), mandamus (परमादेश), prohibition, quo warranto (अधिकार-पृच्छा) and certiorari (उत्प्रेषण)**.
- **Article 32(3)** lets Parliament empower any other court to exercise these powers within local limits, without prejudice to SC powers.
- **Article 32(4)** says this right shall not be suspended except as otherwise provided in the Constitution (Emergency suspension rules under Arts. 358–359).
- Ambedkar called Article 32 the **heart and soul** of the Constitution. The right to constitutional remedies is itself a Fundamental Right.
- Article 32 writs are for **Fundamental Rights**. Article **226** is wider (FR + other legal rights).

Articles 33–35 — Armed forces, martial law, Parliament's exclusive power

- **Article 33** lets Parliament determine to what extent Part III rights apply to members of the armed forces, forces charged with maintenance of public order, persons employed in intelligence/telecom related to them, and analogous forces, so as to ensure proper discharge of duties and maintenance of discipline.
- **Article 34** lets Parliament indemnify any person in the service of the Union or a State, or any other person, for acts done in connection with maintenance or restoration of order in any area where **martial law** was in force. It also validates related sentences, punishments and forfeitures.
- **Article 35** says Parliament (not State Legislatures) shall have power to make laws on matters in Arts. **16(3), 32(3), 33 and 34**, and to prescribe punishment for acts under Arts. **17** and **23**. Existing laws on those subjects continue until altered or repealed by Parliament.

Part IV–IVA — DPSP & Fundamental Duties (Arts. 36–51A)

Art.	Subject	Elaboration
36	Definition of State (Part IV)	Same meaning as **Art. 12**.
37	Application of DPSP	DPSP are **not enforceable** in court, but are **fundamental in the governance** of the country. It is the State's duty to apply them in making laws.
38	Social order; minimise inequalities	Secure a social order for the promotion of welfare. **38(2)** (44th) directs the State to minimise inequalities in income, status, facilities and opportunities.
39	Certain principles of policy	Livelihood for all citizens; ownership and control of material resources distributed for the common good **39(b)**; operation of the economic system does not result in concentration of wealth **39(c)**; equal pay for equal work; health of workers and children; children are given opportunities to develop in a healthy manner. **39(b)–(c)** link to Art. **31C**.
39A	Equal justice and free legal aid	Inserted by the **42nd Amendment**.
40	Organisation of village panchayats	State shall take steps to organise village panchayats and endow them with powers of self-government — seed of **Part IX / 73rd**.

Art.	Subject	Elaboration
41	Right to work, to education and to public assistance	Within the limits of economic capacity and development — unemployment, old age, sickness and disablement, and undeserved want.
42	Just and humane conditions of work and maternity relief	Basis of labour welfare and maternity benefit laws.
43	Living wage for workers; cottage industries	Living wage, decent standard of life, and cottage industries on an individual or co-operative basis in rural areas.
43A	Participation of workers in management	**42nd Amendment**.
43B	Promotion of co-operative societies	**97th Amendment**.
44	Uniform Civil Code	State shall endeavour to secure for citizens a Uniform Civil Code throughout India.
45	Early childhood care and education	After the **86th**: State shall endeavour to provide early childhood care and education for all children until they complete the age of **six years** (6–14 shifted to Art. **21A**).
46	Promotion of educational and economic interests of SC, ST and other weaker sections	Protect them from social injustice and all forms of exploitation.
47	Duty to raise nutrition and standard of living and improve public health	Primary duty of the State. Includes endeavour to prohibit consumption of intoxicating drinks and drugs injurious to health, except for medicinal purposes.
48	Organisation of agriculture and animal husbandry	Organise on modern and scientific lines. Take steps to prohibit slaughter of cows, calves and other milch and draught cattle.
48A	Protection of environment, forests and wildlife	Protect and improve the environment and safeguard forests and wildlife — **42nd Amendment**. Pairs with duty **51A(g)**.
49	Protection of monuments and places and objects of national importance	Protect every monument, place or object of artistic or historic (ऐतिहासिक) interest declared to be of national importance.
50	Separation of judiciary from executive	In the public services of the State.
51	Promotion of international peace and security	Promote international peace and security; maintain just and honourable relations between nations; foster respect for international law and treaty obligations; encourage settlement of international disputes by arbitration.

Article 51A — Fundamental Duties (full table)

- Part **IVA** was added by the **42nd Amendment, 1976** (Swaran Singh Committee background).

- Originally **10** duties. The **86th Amendment, 2002** added **51A(k)** — now **11** duties.
- Duties are addressed to **every citizen** of India. They are **not** directly enforceable like Fundamental Rights, but courts may read them as interpretive aids and Parliament may give them statutory teeth.

Clause	Duty of every citizen
51A(a)	Abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.
51A(b)	Cherish and follow the noble ideals which inspired the national struggle for freedom.
51A(c)	Uphold and protect the sovereignty, unity and integrity of India.
51A(d)	Defend the country and render national service when called upon to do so.
51A(e)	Promote harmony and the spirit of common brotherhood among all the people of India, transcending religious, linguistic and regional or sectional diversities; renounce practices derogatory to the dignity of women.
51A(f)	Value and preserve the rich heritage of our composite culture.
51A(g)	Protect and improve the natural environment including forests, lakes, rivers and wildlife, and have compassion for living creatures.
51A(h)	Develop the scientific temper, humanism and the spirit of inquiry and reform.
51A(i)	Safeguard public property and abjure violence.
51A(j)	Strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement.
51A(k)	Parent or guardian shall provide opportunities for education to the child or ward between the ages of **six and fourteen years** (**86th Amendment**).

- **51A(g)** pairs with DPSP **48A** (environment).
- **51A(k)** pairs with FR **21A** and the rewritten DPSP **45** (under-6 care).

Union Executive — President, Vice-President, Council of Ministers, Attorney-General

Art.	Subject	Elaboration
52	President of India	There shall be a President of India.
53	Executive power of the Union	Vested in the President and exercised directly or through officers subordinate to him. Supreme command of the Defence Forces of the Union, regulation by law.
54	Election of President	Electoral college: elected members of both Houses of Parliament + elected members of the Legislative Assemblies of States (**and of Delhi and Puducherry** after the 70th). Nominated members do **not** vote.
55	Manner of election	Proportional representation by means of the **single transferable vote**; voting by secret ballot. Uniformity among States and parity between the Union and the States.

Art.	Subject	Elaboration
56	Term of office of President	**Five years** from the date of entering office. Continues until the successor enters office. May resign by writing to the Vice-President. May be removed by impeachment under Art. **61**.
57	Eligibility for re-election	A person who holds, or who has held, office as President is eligible for re-election.
58	Qualifications for election as President	Citizen of India; completed **35 years**; qualified for election as a member of the Lok Sabha (लोकसभा); must not hold any office of profit (exceptions as provided).
59	Conditions of President's office	Shall not be a member of either House of Parliament or of a State Legislature (seat becomes vacant on entering office). Shall not hold any other office of profit. Emoluments in the Second Schedule / by law; privileges protected.
60	Oath of President	Oath or affirmation before the **Chief Justice of India** (or, in his absence, the senior-most Judge of the Supreme Court). This form is **not** in the Third Schedule.
61	Impeachment of President	For **violation of the Constitution**. Charge may be preferred by either House after notice by **not less than one-fourth** of the total members of that House and **14 days**. Resolution must be passed by a majority of **not less than two-thirds (ते-भागा) of the total membership (सदन की कुल सदस्य संख्या का)** of that House. The other House investigates.
62	Time of holding election to fill vacancy	Election to fill a vacancy caused by expiry of term shall be completed before the expiry of the term. Casual vacancy election as soon as possible, and in no case later than **six months** from the date of vacancy.

Vice-President — Arts. 63–71 (complete high-yield set)

Art.	Subject	Elaboration
63	The Vice-President of India	There shall be a Vice-President of India.
64	VP as ex-officio Chairman of Rajya Sabha	The Vice-President is **ex-officio Chairman of the Council of States** and shall not hold any other office of profit. While acting as President under Art. 65, he does **not** perform the duties of Chairman of Rajya Sabha.
65	VP to act as President or discharge functions	If the President's office falls vacant by death, resignation, removal or otherwise, the VP **acts as President** until a new President enters office. If the President is unable to discharge functions owing to absence, illness or any other cause, the VP **discharges** those functions until the President resumes. While so acting, the VP has all powers and immunities of the President and the emoluments as determined by Parliament / Second Schedule.
66	Election of Vice-President	Elected by members of an electoral college consisting of the members of **both Houses of Parliament** (elected **and nominated**). System: proportional representation by STV; secret ballot. **State MLAs do not vote** (contrast Art. **54**).

Art.	Subject	Elaboration
67	Term of office of Vice-President	**Five years** from entering office. May resign by writing to the **President**. May be removed by a resolution of the Rajya Sabha passed by a majority of **all the then members** of the Council of States and agreed to by the Lok Sabha; **14 days'** notice is required. Continues until successor enters office.
68	Time of holding election to fill vacancy	Election to fill a vacancy by expiry of term shall be completed before expiry. Casual vacancy: as soon as possible. Person elected to a casual vacancy holds office for the full term of five years from the date of entering office.
69	Oath of Vice-President	Oath or affirmation before the **President** (or a person appointed by him). This form is **not** in the Third Schedule.
70	Discharge of President's functions in other contingencies	Parliament may make provision for discharge of Presidential functions in contingencies not provided for in this Chapter.
71	Matters relating to election of President / VP	Doubts and disputes arising out of or in connection with the election of a President or Vice-President shall be inquired into and decided by the **Supreme Court**, whose decision is final.

- Trap: President's electoral college = elected MPs + elected State MLAs (and Delhi/Puducherry). Vice-President's college = **Parliament only** (including nominated MPs).
- Trap: President is removed by **impeachment** (Art. 61). Vice-President is removed by **Rajya Sabha resolution + Lok Sabha agreement** (Art. 67) — not the same procedure.
- Trap: VP oath = **Art. 69**, not Third Schedule.

Art.	Subject	Elaboration
72	Power of President to grant pardons etc.	Pardon, reprieve, respite, remission, suspension, commutation — for offences against Union law, sentences by **court-martial**, and **death sentences** in all cases.
73	Extent of executive power of the Union	Extends to matters on which Parliament has power to make laws, and to exercise of rights/authority/jurisdiction exercisable by the Government of India by virtue of any treaty or agreement — subject to the Constitution and to State executive power on Concurrent List (समवर्ती सूची) matters where a State law applies.
74	Council of Ministers to aid and advise President	There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President. The **42nd** made advice binding. The **44th Amendment** (44वां संशोधन) allows the President to require the CoM to reconsider advice **once**; thereafter the President shall act in accordance with the advice tendered after such reconsideration.
75	Other provisions as to Ministers	PM is appointed by the President. Other Ministers are appointed by the President on the advice of the PM. Collective responsibility to the **Lok Sabha** (लोकसभा). A Minister who for any period of **six consecutive months** is not a member of either House ceases to be a Minister. **91st Amendment**: CoM of the Union shall not exceed **15%** of the total number of members of the Lok Sabha.

Art.	Subject	Elaboration
76	Attorney-General for India	Appointed by the President. Must be qualified to be appointed a Judge of the Supreme Court. Gives advice on legal matters and performs other duties of a legal character as assigned. Right of audience in all courts in India. May take part in the proceedings of Parliament without vote. Holds office during the pleasure of the President.
77	Conduct of business of the Government of India	All executive action of the Government of India shall be expressed to be taken in the name of the President. Orders and instruments are authenticated as rules provide. President makes rules for convenient transaction of business and allocation among Ministers.
78	Duties of Prime Minister as respects furnishing of information to President	Communicate to the President all decisions of the CoM relating to administration and legislation. Furnish such information relating to administration as the President may call for. If the President so requires, submit for the consideration of the CoM any matter on which a decision has been taken by a Minister but which has not been considered by the Council.

Parliament, Union Judiciary, CAG

Art.	Subject	Elaboration
79	Constitution of Parliament	Parliament consists of the President and two Houses — **Rajya Sabha** (राज्यसभा) (Council of States) and **Lok Sabha** (House of the People).
80	Composition of Rajya Sabha	Maximum **250** members: not more than **238** representatives of States and UTs + **12** nominated by the President from persons having special knowledge or practical experience in literature, science, art and social service.
81	Composition of Lok Sabha	Not more than **530** representatives of States + not more than **20** representatives of UTs. Nomination of not more than two Anglo-Indian members lapsed after the **104th Amendment (2020)**.
83	Duration of Houses	Rajya Sabha is a continuing House; as nearly as possible **one-third** of members retire every **second year**. Lok Sabha continues for **five years** from its first meeting unless sooner dissolved. During a Proclamation of Emergency, Parliament may by law extend the life of the Lok Sabha (लोकसभा का कार्यकाल समाप्त) by **one year at a time**, not extending beyond six months after the Proclamation ceases.
85	Sessions of Parliament, prorogation (सत्रावसान) and dissolution (विघटन)	President summons each House. **Six months** shall not intervene between its last sitting (बैठक) in one session (पंगु सत्र) and the date appointed for its first sitting in the next session. President may prorogue Houses and dissolve the Lok Sabha.
93	Speaker and Deputy Speaker of Lok Sabha	Lok Sabha chooses a Speaker and a Deputy Speaker from among its members.

Art.	Subject	Elaboration
108	Joint sitting (संयुक्त बैठक) of both Houses	If a Bill (other than a Money Bill or a Constitution Amendment Bill) is rejected by the other House, or Houses disagree on amendments, or more than six months elapse from receipt without passage, the President may summon (आहूत करना) a joint sitting. Presided over by the **Speaker** of the Lok Sabha.
110	Definition of Money Bill	A Bill dealing with taxation, borrowing, Consolidated Fund, Appropriation, etc., as listed. The **Speaker's certificate** that a Bill is a Money Bill is **final**. Rajya Sabha cannot amend a Money Bill; it may recommend (सिफारिश) within **14 days**.
111	Assent to Bills	When a Bill is presented, the President may assent, withhold assent, or (except a Money Bill) return the Bill once for reconsideration. After reconsideration and re-passage, the President shall not withhold assent.
112	Annual Financial Statement	The President causes to be laid before both Houses a statement of estimated receipts and expenditure of the Government of India for that year — the Union **Budget**.
123	Power of President to promulgate Ordinances	When **both Houses** are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action. Ordinance has the same force as an Act. Must be laid before both Houses. Ceases to operate at the expiration of **six weeks** from reassembly unless approved earlier; may be withdrawn.
124	Establishment and constitution of Supreme Court	Chief Justice of India and other Judges as Parliament may by law prescribe. Appointed by the President. Judge holds office until age **65**. Removal by Presidential order after address by each House on grounds of proved misbehaviour or incapacity (special majority process under 124(4)).
129	Supreme Court to be a court of record	SC is a court of record and has power to punish for contempt of itself.
131	Original jurisdiction of the Supreme Court	Centre vs State(s); State vs State — subject to exclusions for disputes arising out of treaties/agreements that exclude such jurisdiction.
132–134	Appellate jurisdiction (constitutional / civil / criminal)	Appeals from High Courts in certain constitutional, civil and criminal matters as provided.
136	Special leave to appeal	SC may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed by any court or tribunal in India (except a court or tribunal constituted by or under any law relating to the Armed Forces).
137	Review of judgments or orders by the Supreme Court	SC may review its own judgment or order, subject to law made by Parliament / rules.
141	Law declared by Supreme Court to be binding on all courts	The law declared by the Supreme Court is binding on **all courts** within the territory of India.

Art.	Subject	Elaboration
143	Power of President to consult Supreme Court	President may refer a question of law or fact of public importance to the SC for consideration. The opinion is **advisory** (not binding like a judgment), though highly respected.
148	Comptroller and Auditor-General of India	Appointed by the President. Oath in the Third Schedule. Removed in like manner and on like grounds as a Judge of the Supreme Court.
149–151	Duties and reports of CAG	Duties prescribed by Parliament. Reports relating to Union accounts are submitted to the **President**, who causes them to be laid before each House of Parliament. State accounts reports go to the **Governor**, who causes them to be laid before the Legislature.

States — Governor, State Executive, Legislature, Advocate-General

Art.	Subject	Elaboration
153	Governors of States	There shall be a Governor for each State. The same person may be appointed Governor for two or more States.
154	Executive power of State	Vested in the Governor and exercised directly or through officers subordinate to him.
155	Appointment of Governor	By the **President** by warrant under his hand and seal (मुद्रा).
156	Term of office of Governor	Holds office during the pleasure of the President. Usual term teaching: **five years** from entering office. May resign to the President.
159	Oath of Governor	Oath or affirmation before the Chief Justice of the High Court (or, in his absence, the senior-most Judge of that Court). **Not** in the Third Schedule.
161	Power of Governor to grant pardons etc.	For offences against any law relating to a matter to which the executive power of the State extends. **No** power over court-martial. Death-sentence teaching: Governor may suspend, remit or commute; the full pardon map for death sentences sits with the President under Art. **72**.
163	Council of Ministers to aid and advise Governor	There shall be a CoM with the Chief Minister at the head to aid and advise the Governor, except in so far as the Governor is by or under the Constitution required to exercise functions in his **discretion**.
164	Other provisions as to Ministers	CM appointed by the Governor; other Ministers on CM's advice. Collective responsibility to the Legislative Assembly. In the States of Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha there shall be a Minister in charge of tribal welfare (and may hold additional charge). CoM size cap under the **91st** (15% of Assembly).
165	Advocate-General for the State	Appointed by the Governor. Must be qualified to be appointed a Judge of a High Court. Advises the State Government on legal matters. Right of audience in all courts in the State. Holds office during the pleasure of the Governor. Parallel to the Union's Attorney-General (Art. **76**).

Art.	Subject	Elaboration
167	Duties of Chief Minister as respects furnishing of information to Governor	Parallel to Art. **78** — communicate CoM decisions, furnish information the Governor calls for, and submit a Minister's decision for CoM consideration if the Governor so requires.
168	Constitution of Legislatures in States	Every State shall have a Legislature which consists of the Governor and one House (unicameral) or two Houses (bicameral). Creation or abolition of a Legislative Council follows Art. **169**.
200	Assent to Bills	When a Bill is presented to the Governor, he may assent, withhold assent, return the Bill (if it is not a Money Bill) for reconsideration, or **reserve the Bill for the consideration of the President**.
201	Bills reserved for consideration of President	President may assent, withhold assent, or direct the Governor to return the Bill to the House or Houses for reconsideration.
213	Power of Governor to promulgate Ordinances	When the Legislature (or both Houses where bicameral) is not in session. Same force as an Act of the State Legislature. Needs instructions from the President in specified cases (for example where a Bill would have required reservation).

High Courts and Subordinate Courts (Arts. 214–237) — missing cluster filled

Art.	Subject	Elaboration
214	High Courts for States	There shall be a High Court for each State. Parliament may establish a **common High Court** for two or more States under Art. **231**.
215	High Courts to be courts of record	Every High Court is a court of record and has power to punish for contempt of itself. Parallel to Art. **129** for the Supreme Court.
216	Constitution of High Courts	Every High Court consists of a Chief Justice and such other Judges as the President may from time to time deem necessary.
217	Appointment and conditions of the office of a Judge of a High Court	Appointed by the President after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court. Holds office until age **62**. Resignation to the President. Removal in the manner provided for removal of a Supreme Court Judge (Art. 124 procedure via Art. 218).
219	Oath of High Court Judges	Oath or affirmation before the Governor (or a person appointed by him). Form is in the **Third Schedule**.
222	Transfer of a Judge from one High Court to another	President may transfer a Judge after consultation with the Chief Justice of India.
223	Appointment of acting Chief Justice	When the office of Chief Justice is vacant or the CJ is unable to perform duties, the President may appoint one of the other Judges to perform them.

Art.	Subject	Elaboration
224	Appointment of additional and acting Judges	President may appoint additional Judges for a temporary increase in business (up to two years) and acting Judges when a Judge is absent or unable to sit.
224A	Appointment of retired Judges at sittings of High Courts	Chief Justice of a High Court may, with the previous consent of the President, request a retired Judge to sit and act as a Judge of that Court.
226	Power of High Courts to issue certain writs	Every High Court may issue to any person or authority, including in appropriate cases any Government, directions, orders or writs, including habeas corpus, mandamus, prohibition, quo warranto and certiorari, for enforcement of **Fundamental Rights** and **for any other purpose**. This is **wider than Art. 32**. Territorial reach depends on whether the cause of action arises wholly or in part within the Court's jurisdiction.
227	Power of superintendence over all courts by the High Court	Every High Court has **superintendence** over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction (subject to exclusions for Armed Forces courts). This is supervisory jurisdiction — distinct from the writ power under Art. **226**.
228	Transfer of certain cases to High Court	If a case pending in a subordinate court involves a substantial question of law as to the interpretation of the Constitution, the High Court may withdraw the case and either dispose of it or determine the question and return it.
231	Establishment of a common High Court for two or more States	Parliament may by law establish a common High Court for two or more States or for two or more States and a Union Territory.
233	Appointment of district judges	Appointed by the Governor in consultation with the High Court exercising jurisdiction in relation to the State.
235	Control over subordinate courts	The High Court has control over district courts and courts subordinate thereto, including posting, promotion and leave of persons belonging to the judicial service and holding posts inferior to district judge.

- Trap: **226** = writs (FR + any other purpose). **227** = superintendence over subordinate courts/tribunals. Do not treat them as the same power.
- Trap: SC Judge retires at **65**. HC Judge retires at **62**.
- Trap: Common High Court = Art. **231** (e.g. teaching examples of shared High Courts across States/UTs).

UTs and Local Government (selected)

Art.	Subject	Elaboration
239	Administration of Union Territories	Every UT is administered by the President acting through an **Administrator** appointed by him (Lieutenant Governor / Chief Commissioner as designated).

Art.	Subject	Elaboration
239AA	Special provisions with respect to Delhi	National Capital Territory of Delhi has a Legislative Assembly and a Council of Ministers. Subjects of **public order, police and land** remain with the Centre. Inserted by the **69th Amendment, 1991**.
243	Definitions (Panchayats)	Defines district, Gram Sabha, intermediate level, Panchayat, village and related terms for Part IX.
243A	Gram Sabha	A Gram Sabha may exercise such powers and perform such functions at the village level as the Legislature of a State may by law provide.
243D	Reservation of seats (Panchayats)	Seats reserved for SCs/STs in proportion to population (जनसंख्या). Not less than **one-third** of total seats reserved for women (including seats reserved for women belonging to SC/ST).
243E	Duration of Panchayats	Every Panchayat continues for **five years**. Election to constitute a Panchayat shall be completed before expiry of duration; if dissolved, before expiration of a period of **six months** from the date of dissolution (with limited exceptions).
243G	Powers, authority and responsibilities of Panchayats	State may by law endow Panchayats with powers for economic development and social justice, including implementation of schemes for subjects in the **Eleventh Schedule (29 subjects)**.
243K	Elections to the Panchayats	Superintendence, direction and control of electoral rolls and elections vested in a **State Election Commission**. The State Election Commissioner is appointed by the Governor.
243W	Powers, authority and responsibilities of Municipalities	State may endow Municipalities with powers for subjects in the **Twelfth Schedule (18 subjects)**.
243ZA	Elections to the Municipalities	Superintendence of municipal elections also vested in the State Election Commission (same institutional line as Art. 243K).
244	Administration of Scheduled Areas and Tribal Areas	**244(1)** applies the **Fifth Schedule** to Scheduled Areas and Scheduled Tribes in States other than Assam, Meghalaya, Tripura and Mizoram. **244(2)** applies the **Sixth Schedule** to tribal areas in **Assam, Meghalaya, Tripura and Mizoram**.

Centre–State, Finance, Services, Elections, Emergency, Amendment

Art.	Subject	Elaboration
245	Extent of laws made by Parliament and by State Legislatures	Parliament may make laws for the whole or any part of India. A State Legislature may make laws for the whole or any part of the State. A law made by Parliament shall not be invalid because it would have extra-territorial operation.
246	Subject-matter of laws made by Parliament and State Legislatures	**Seventh Schedule**: List I (Union), List II (State), List III (Concurrent). In case of overlap, Union power prevails subject to Art. **254** nuances on the Concurrent List.

Art.	Subject	Elaboration
248	Residuary (अवशिष्ट) powers of legislation	Parliament has exclusive power to make any law with respect to any matter not enumerated in the Concurrent List or State List. Linked to Union List (संघ सूची) Entry **97**.
249	Power of Parliament to legislate with respect to a matter in the State List in the national interest	If the Rajya Sabha passes a resolution supported by not less than **two-thirds** (ते-भागा) of the members **present and voting**, Parliament may legislate on that State List matter for the whole or any part of India. Such resolution remains in force for a period not exceeding **one year** and may be renewed.
250	Power of Parliament to legislate with respect to any matter in the State List if a Proclamation of Emergency is in operation	While a Proclamation of Emergency is in operation, Parliament may legislate for a State on State List matters.
252	Power of Parliament to legislate for two or more States by consent	If the Legislatures of two or more States pass resolutions that Parliament should legislate on a State List matter, Parliament may do so for those States. Other States may adopt later by resolution.
253	Legislation for giving effect to international agreements	Parliament may make any law for implementing any treaty, agreement or convention, or any decision at an international conference — even on a State List matter.
254	Inconsistency between laws made by Parliament and laws made by State Legislatures	On a Concurrent List matter, if a State law is repugnant to a Parliamentary law, the Union law prevails. A State law reserved for the President and assented to may prevail in that State until Parliament legislates further.
256	Obligation of States and the Union	Executive power of every State shall be so exercised as to ensure compliance with Union laws. Union may give directions to a State as may appear necessary.
262	Adjudication of disputes relating to waters of inter-State rivers or river valleys	Parliament may by law provide for adjudication of any dispute or complaint. Parliament may also provide that neither the Supreme Court nor any other court shall exercise jurisdiction in respect of any such dispute.
263	Provisions with respect to an Inter-State Council	If at any time it appears to the President that the public interests would be served, he may establish an Inter-State Council. Sarkaria (सरकारिया आयोग) Commission recommended its activation; it was set up in **1990**.
265	Taxes not to be imposed save by authority of law	No tax shall be levied or collected except by authority of law.
266	Consolidated Funds and public accounts of India and of the States	Consolidated Fund of India (भारत की संचित निधि) and Consolidated Fund of each State — all revenues, loans and moneys received in repayment of loans.
267	Contingency Fund	Parliament / State Legislature may establish a Contingency Fund of India / of the State for advances pending authorisation.

Art.	Subject	Elaboration
280	Finance Commission	President shall constitute a Finance Commission within two years from commencement and thereafter at the expiration of every **fifth year** or at such earlier time as he considers necessary. Recommends distribution of net proceeds of taxes, principles of grants-in-aid, and other related matters. Chairman + four (चातुर्याम) other members.
300A	Persons not to be deprived of property save by authority of law	No person shall be deprived of his property save by authority of law. This is a **legal / constitutional right**, not a Fundamental Right. The **44th Amendment** deleted the old Fundamental Right to property (Arts. 19(1)(f) and 31).
310	Tenure of office of persons serving the Union or a State	Except as expressly provided, a Union civil servant holds office during the pleasure of the President, and a State civil servant during the pleasure of the Governor — subject to Art. **311**.
311	Dismissal, removal or reduction in rank of persons employed in civil capacities	No person shall be dismissed or removed by an authority subordinate to that by which he was appointed. No dismissal, removal or reduction in rank except after an inquiry and a reasonable opportunity of being heard — with exceptions (conviction on criminal charge; impracticable to hold inquiry; security of the State).
312	All-India Services	If the Rajya Sabha declares by resolution supported by not less than **two-thirds** of the members present and voting that it is necessary in the national interest, Parliament may create one or more All-India Services common to the Union and the States. IAS, IPS and Indian Forest Service are the classic examples.
315	Public Service Commissions for the Union and for the States	UPSC for the Union; a Public Service Commission for each State; two or more States may agree to a Joint State Commission.
320	Functions of Public Service Commissions	Conduct examinations for appointments. Consulted on recruitment methods, principles of appointment/promotion/transfer, suitability of candidates, disciplinary matters, and related claims — subject to regulations making exceptions.
323A	Administrative tribunals	Parliament may by law provide for adjudication of disputes relating to recruitment and conditions of service of Union / State public servants. Basis of CAT / SATs. Part **XIVA** (42nd Amendment).
323B	Tribunals for other matters	Appropriate Legislature may provide tribunals for tax, foreign exchange, industrial and labour disputes, land reforms, ceiling on urban (नगरीय) property, elections to Legislature, and other listed matters.
324	Superintendence, direction and control of elections	Vested in the **Election Commission** (निर्वाचन आयोग) for elections to Parliament, State Legislatures, and offices of President and Vice-President. Commission consists of the Chief Election Commissioner and such number of other Election Commissioners as the President may fix. CEC removed like a Supreme Court Judge.

Art.	Subject	Elaboration
325	No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste or sex	There shall be one general electoral roll for every territorial constituency.
326	Elections to the House of the People and to the Legislative Assemblies of States to be on the basis of adult suffrage	Citizen of India, not less than **eighteen years** of age (reduced from 21 by the **61st Amendment**), and not otherwise disqualified.
329	Bar to interference by courts in electoral matters	Validity of laws relating to delimitation or allotment of seats shall not be called in question in any court. No election to Parliament or a State Legislature shall be called in question except by an election petition presented to such authority and in such manner as Parliament may by law provide.
330 / 332	Reservation of seats for Scheduled Castes and Scheduled Tribes	In the Lok Sabha / State Legislative Assemblies — seats reserved in proportion to population, as provided.
335	Claims of Scheduled Castes and Scheduled Tribes to services and posts	Shall be taken into consideration, consistently with the maintenance of efficiency of administration.
338 / 338A / 338B	National Commissions for SC / ST / Backward Classes	Constitutional bodies. NCBC strengthened as a constitutional body by the **102nd Amendment**.
343	Official language of the Union	Hindi in Devanagari script. The international form of Indian numerals. English continues for official purposes of the Union as provided by law (Official Languages Act line).
348	Language to be used in the Supreme Court and in the High Courts and for Acts, Bills, etc.	Until Parliament by law otherwise provides, all proceedings in the Supreme Court and in every High Court shall be in English. Governor, with previous consent of the President, may authorise use of Hindi or the State language in the High Court, with judgments still in English unless Parliament provides otherwise.
351	Directive for development of the Hindi language	It shall be the duty of the Union to promote the spread of Hindi and to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India.
352	Proclamation of Emergency (National Emergency)	If the President is satisfied that a grave emergency exists whereby the security of India or any part is threatened by **war**, **external aggression**, or **armed rebellion** (44th replaced “internal disturbance”). Written advice of the Union Cabinet is required. Parliamentary approval and duration rules apply.

Art.	Subject	Elaboration
355	Duty of the Union to protect every State against external aggression and internal disturbance	Also to ensure that the government of every State is carried on in accordance with the Constitution.
356	Provisions in case of failure of constitutional machinery in States (President's Rule)	If the President, on receipt of a report from the Governor or otherwise, is satisfied that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution. Initially for six months with parliamentary approval rhythm; maximum duration teaching is typically **three years** with conditions.
358 / 359	Suspension of provisions of Art. 19 / enforcement of FR during Emergencies	**358**: while a Proclamation of Emergency on war or external aggression is in operation, Art. **19** does not restrict State power (automatic suspension teaching). **359**: President may by order declare that the right to move any court for enforcement of such of the rights conferred by Part III (except Arts. **20** and **21**) as may be named shall remain suspended.
360	Provisions as to financial emergency	If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part is threatened. Directions may include reduction of salaries and allowances of persons serving the Union or a State, including Judges. **Never imposed so far**.
365	Effect of failure to comply with, or to give effect to, directions given by the Union	Where a State fails to comply with Union directions, it shall be lawful for the President to hold that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution — a ground linked to Art. **356**.
368	Power of Parliament to amend the Constitution and procedure therefor	Parliament may amend by adding, varying or repealing any provision. Ordinary amendments need a special majority. Amendments of certain federal features also need ratification by not less than **one-half** of the State Legislatures. Basic Structure cannot be destroyed (*Kesavananda*).
393	Short title	This Constitution may be called the **Constitution of India**.
394	Commencement	Some articles came into force on **26 Nov 1949**. The Constitution as a whole commenced (लागू) on **26 Jan 1950**.
395	Repeals	The Indian Independence Act (अधिनियम), 1947, and the Government of India Act, 1935, together with related enactments as specified, stand repealed.

Part XXI — 371 series (special States)

Art.	State	Elaboration
370	Jammu & Kashmir (historical)	Temporary provisions relating to the State of Jammu and Kashmir. Special status teaching is historical. The article was made **inoperative** after the Presidential Order and the constitutional reorganisation of 2019. J&K and Ladakh (लद्दाख) became Union Territories.
371	Maharashtra and Gujarat	Governor's special responsibility for Vidarbha, Marathwada and the rest of Maharashtra, and for Saurashtra, Kutch and the rest of Gujarat — development boards and equitable allocation of funds and opportunities.
371A	**Nagaland**	No Act of Parliament in respect of Naga (नागा) religious or social practices, Naga customary law and procedure, administration of civil and criminal justice involving Naga customary law, or ownership and transfer of land and its resources, shall apply to Nagaland unless the **Legislative Assembly** of Nagaland so decides.
371B	**Assam**	President may provide for the constitution and functions of a committee of the Legislative Assembly consisting of members elected from the tribal areas of Assam.
371C	**Manipur**	Special provision for a committee of the Legislative Assembly consisting of members elected from the Hill Areas of Manipur, with responsibility of the Governor.
371D	Andhra Pradesh and Telangana	Equitable opportunities and facilities for the people of different parts of the State in public employment and education; administrative tribunal history (इतिहास) in teaching.
371E	Andhra Pradesh	Parliament may by law provide for the establishment of a **Central University** in Andhra Pradesh.
371F	**Sikkim**	Special provisions consequential upon the admission of Sikkim into the Union (1975), including Legislative Assembly composition and the Governor's special responsibility for peace and for the social and economic advancement of different sections of the population.
371G	**Mizoram**	Parallel to 371A for Mizo (मिज़ो) religious or social practices, customary law and procedure, administration of civil and criminal justice involving Mizo customary law, and ownership and transfer of land — Parliament's Act applies only if the **Legislative Assembly** so decides.
371H	**Arunachal Pradesh**	Governor has special responsibility with respect to **law and order** in the State. In discharge of that responsibility, the Governor acts after consulting the Council of Ministers, but exercises individual judgment as provided.
371I	**Goa**	The Legislative Assembly of the State of Goa shall consist of not less than **thirty members**.
371J	**Karnataka**	Special provision for the Hyderabad-Karnataka / **Kalyana-Karnataka** region — establishment of a development board, equitable allocation of funds, and reservation in education and State government posts for local persons as provided.

> **Match traps:** Art. **32 vs 226** · Art. **226 vs 227** · Art. **72 vs 161** · Art. **123 vs 213** · Art. **54 vs 66** (President: elected MPs + elected MLAs; VP: Parliament only) · Art. **76 vs 165** (AG of India vs

> Advocate-General of a State) · Art. **352 vs 356 vs 360** · Art. **4 ≠ 368** · Art. **371I Goa** vs **371J Karnataka** · President oath **60** / VP oath **69** / Governor oath **159** (none of these three is in the Third Schedule).

Schedules — Master Match (1 to 12)

Originally **8 Schedules** (1950); now **12**.

Schedule	Subject	Amendment / note
First	Names of States & UTs; territorial extent	—
Second	Emoluments, allowances, privileges — President, Governors, Speakers, Judges (SC/HC), CAG, etc.	—
Third	Forms of **Oaths or Affirmations**	—
Fourth	Allocation of seats in **Rajya Sabha** (Council of States) to States/UTs	—
Fifth	Administration & control of **Scheduled Areas and Scheduled Tribes** (except areas under 6th Schedule)	—
Sixth	Administration of **tribal areas** in **Assam, Meghalaya, Tripura, Mizoram (AMTM)** — Autonomous District/Regional Councils	—
Seventh	**Union / State / Concurrent Lists** (distribution of powers)	—
Eighth	**Languages** recognised by the Constitution (**22**)	Expanded by amendments
Ninth	Validation of certain Acts and Regulations (land reform etc.)	Added by **1st Amendment (1951)**; judicial review later via *I.R. Coelho* (2007) for post-Kesavananda entries
Tenth	**Anti-defection** provisions	Added by **52nd Amendment (1985)**
Eleventh	Powers/authority of **Panchayats** — **29** subjects	**73rd Amendment (1992)**
Twelfth	Powers/authority of **Municipalities** — **18** subjects	**74th Amendment (1992)**

PYQ — UPPCS Prelims 2023, Q7

Which Schedule—Subject pair is NOT correctly matched?

A. Third — Oaths B. Eighth — Languages C. Ninth — Allocation of seats in Council of States D. Tenth — Defection

Show answer

Logic: Ninth Schedule validates Acts. Rajya Sabha seat allocation is the **Fourth** Schedule. Oaths / languages / defection matches are standard. **Ans: C.** RS seat allocation = **Fourth**

Schedule; Ninth = validation of Acts. Trap: mixing “Council of States” with Ninth because both sound institutional.

PYQ — UPPCS Prelims 2022, Q89

Match List-I with List-II:

List-I (Schedule) A. Third Schedule B. Fourth Schedule C. Seventh Schedule D. Eighth Schedule

List-II (Subject) 1. Allocation of seats in Rajya Sabha 2. Forms of Oaths or Affirmations 3. Languages 4. Union / State / Concurrent Lists

A. A-4, B-3, C-1, D-2 B. A-3, B-4, C-2, D-1 C. A-2, B-1, C-4, D-3 D. A-1, B-2, C-3, D-4

Show answer

Logic: Match Schedule to subject. Third = oaths; Fourth = RS seats; Seventh = Lists; Eighth = languages. Row order is not the answer code. **Ans: C** — Oaths; RS seats; Lists; Languages.

PYQ — UPPCS Prelims 2019, Q28

Which of the following is NOT correctly matched?

A. Public Health and Sanitation — State List B. Census — Union List C. Allocation of seats in Council of States — Second Schedule D. Anti-Defection — Tenth Schedule

Show answer

Logic: Second Schedule is emoluments of constitutional functionaries. RS seat allocation is **Fourth**. Public health = State List; Census = Union List; anti-defection = Tenth. **Ans: C.** Allocation of RS seats = **Fourth** Schedule (Second = emoluments). Trap: “Council of States” + “Second” looks neat in a match table but is wrong.

PYQ — UPPCS Prelims 2025, Q113

Match List-I with List-II and select the correct answer using the code given below the lists:

List-I (Schedule)

Code	Schedule
A	Seventh Schedule
B	Eighth Schedule
C	Ninth Schedule
D	Tenth Schedule

List-II (Subject)

Code	Subject
1	Languages

Code	Subject
2	Anti-defection
3	Union, State and Concurrent Lists
4	Validation of certain Acts and Regulations

> Note: Row order in the tables is **not** the answer.

A. 3, 1, 2, 4 B. 3, 1, 4, 2 C. 2, 3, 4, 1 D. 4, 2, 1, 3

Show answer

Logic: Seventh = Lists; Eighth = languages; Ninth = validation of Acts; Tenth = anti-defection. Do not swap Ninth and Tenth. **Ans: B — 3, 1, 4, 2** (Lists; Languages; Validation of Acts; Defection).

First–Fourth Schedules (who / what)

First Schedule - Names of **States and Union Territories** and their territorial extent. - Present: **28 States + 8 UTs** (after J&K reorganisation, 2019). - Alteration of First Schedule often follows laws under **Arts. 2–4** (not Art. 368).

Second Schedule - **Emoluments, allowances, privileges** of: President, Governors, Speaker/Deputy Speaker of LS, Chairman/Deputy Chairman of RS, Speaker/Deputy Speaker of State Assembly, Chairman/Deputy of Legislative Council, **Judges of SC and HC**, **CAG**. - **Trap:** PM / CM / Ministers' salaries are **not** in the Second Schedule (ordinary law).

Third Schedule - Forms of **Oaths or Affirmations** of: Union/State Ministers, candidates for Parliament/State Legislature, MPs/MLAs/MLCs, Judges of SC/HC, CAG. - **Trap:** Oath of **President = Art. 60**; **VP = Art. 69**; **Governor = Art. 159** — these are **not** Third Schedule forms.

Fourth Schedule - Allocation of **Rajya Sabha** seats to States/UTs. - Strength: **245** (233 elected + 12 nominated). - **Uttar Pradesh (उत्तर प्रदेश) = 31** (highest). Several small States/UTs have **1**.

Fifth vs Sixth Schedule

Point	Fifth Schedule	Sixth Schedule
Article	**244(1)**	**244(2)** (+ 275 as relevant)
Coverage	Scheduled Areas & STs in States **other than** 6th Schedule areas	Tribal areas of **Assam, Meghalaya, Tripura, Mizoram** only
Who declares	**President** notifies Scheduled Areas	Specified tribal areas in AMTM
Body	**Tribes Advisory Council** (not more than 20; ~¾ ST MLAs)	**Autonomous District / Regional Councils**

Point	Fifth Schedule	Sixth Schedule
ADC composition	—	Not more than **30** members; not more than **4** nominated by the Governor; rest elected on adult suffrage
Role	Governor special responsibility; report to President	Councils make laws on land, forests (other than reserved), shifting cultivation, village admin, inheritance, marriage, social customs
Memory	Broader ST/Scheduled Areas tool; **PESA 1996** (पेसा) applies here	**AMTM only** — **not** Nagaland / Sikkim / Arunachal / Manipur

- Declaring a Fifth Schedule area does **not** strip the State of executive power; the Union does **not** take over total administration merely on the Governor's recommendation.
- *Samatha* (1997) held that transfer of tribal land in Scheduled Areas to private parties for mining is unconstitutional under the Fifth Schedule frame.
- Ninth Schedule was added under PM **Jawaharlal Nehru** (जवाहरलाल नेहरू) (1st Amendment, 1951) to protect land-reform / zamindari-abolition laws. **PYQ — UPPCS Prelims 2019, Q31**

Sixth Schedule is applicable in which of the following States?

A. Tripura B. Sikkim C. Nagaland D. All of the above

Show answer

Ans: A — Tripura (AMTM; not Nagaland/Sikkim).

Seventh Schedule — Union / State / Concurrent Lists

- **Art. 246** + **7th Schedule** distribute legislative powers.
- Original entries (1950): Union **97** · State **66** · Concurrent **47**.
- Residuary powers → **Centre** (**Art. 248** / Union List Entry **97**).
- Conflict on Concurrent List → **Union law prevails** (**Art. 254**); State law may prevail if reserved for President and assented, until Parliament legislates again.

Who legislates

List	Who	Typical items
Union (I)	Parliament exclusive	Defence, foreign affairs, UN, war & peace, atomic energy, railways, airways, posts, currency, RBI, banking, insurance, stock exchanges, **census**, UPSC, inter-State trade, oilfields
State (II)	State Legislature exclusive	**Public order**, **police**, **public health & sanitation**, local government, agriculture, land, fisheries, intoxicating liquors, betting & gambling

List	Who	Typical items
Concurrent (III)	Both	Criminal law & procedure, marriage & divorce, **succession** (उत्तराधिकार क्रम), contracts, bankruptcy, **adulteration of foodstuffs/goods**, trade unions, labour welfare, electricity, newspapers, economic & social planning

42nd Amendment — 5 subjects State → Concurrent

Education · Forests · Protection of wild animals & birds · Weights & measures · Administration of justice (constitution/organisation of courts except SC/HC).

PYQ-tested list items

Item	List
Census	**Union**
Public Health and Sanitation	**State**
Adulteration of foodstuffs / goods	**Concurrent**
Succession	**Concurrent**
Criminal law / Criminal procedure	**Concurrent**
Trade unions; industrial disputes	**Concurrent**
Education; Forests; wild animals (after 42nd)	**Concurrent**
Population control and family planning (Entry 20A)	**Concurrent** (42nd)
Prevention of cruelty to animals	**Concurrent**
Price control	**Concurrent**
Economic and social planning	**Concurrent**
Police / Public order / Prisons / Local government (Panchayati Raj (पंचायती राज)) / Gas / Agriculture / Land	**State**
Banking / Currency / Defence / Insurance / Stock exchanges / Railways / Corporation tax	**Union**
Inter-State quarantine; Inter-State migration; Inter-State trade and commerce	**Union**
Tax on agricultural income; Tax on consumption/sale of electricity	**State**
Space research / other residuary subjects	**Union** (residuary)
“Trade and Commerce” as a bare unqualified label	**Not** whole Concurrent (Union/State split) — UPPCS 2024 trap

- Present counts after amendments: Union about **98**, State about **59**, Concurrent about **52**.
- President’s oath is in **Article 60**, **not** in the Third Schedule (Third Schedule covers ministers, MPs, judges, CAG, State ministers/MLAs, HC judges).

- Right to impose taxes/fees by Union and States is distributed through the **Seventh Schedule** lists.
  PYQ — UPPCS Prelims 2024, Q143

Which of the following is/are included in the Concurrent List?

1. Trade and Commerce
2. Adulteration of Goods
3. Succession

A. 1 and 3 B. 1, 2 and 3 C. Only 1 D. 2 and 3

Show answer

Ans: D — 2 and 3. Unqualified “Trade and Commerce” is not treated as Concurrent as a whole.

Eighth Schedule — Languages (22)

22 languages: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu.

Original 14 (1950): Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu.

How the number grew (key facts)

- Original: **14** (1950).
- **Sindhi — 21st Amendment (1967)** → 15.
- **Konkani, Manipuri, Nepali — 71st Amendment (1992)** → 18.
- **Bodo, Dogri, Maithili, Santhali — 92nd Amendment (2003)** → **22**.

NOT in Eighth Schedule (common traps)

- **Bhojpuri**, Rajasthani, English (English is official link language by law, not 8th Schedule (अष्टम अनुसूची)), Tulu, etc.

PYQ — UPPCS Prelims 2025, Q102

Which language(s) is/are NOT included in the Eighth Schedule?

1. Nepali
2. Dogri
3. Bodo
4. Bhojpuri

A. 1 and 2 B. Only 4 C. 3 and 4 D. Only 1

Show answer

Ans: B — Only 4 (Bhojpuri).

Ninth & Tenth Schedules

Ninth Schedule

- Added by **1st Constitutional Amendment, 1951**.
- Protects certain Acts/Regulations (esp. land reforms) from being challenged for violating FR (historical purpose).
- After **Kesavananda / I.R. Coelho (2007)**: laws inserted in 9th Schedule **after 24 April 1973** can be tested on **Basic Structure**.
- **Trap:** Ninth ≠ Rajya Sabha seats.

Tenth Schedule

- Added by **52nd Amendment, 1985 — Anti-defection law**.
- Disqualification of MPs/MLAs on defection; Speaker/Chairman decides (subject to judicial review after *Kihoto Hollohan*).
- **91st Amendment (2003)** tightened (e.g. size of CoM; merger rules).

Eleventh & Twelfth Schedules

Schedule	Article	Local body	Subjects	Amendment
11th	**243G**	Panchayats	**29**	73rd (1992)
12th	**243W**	Municipalities	**18**	74th (1992)

11th Schedule — 29 subjects (Panchayats)

Agriculture · Land improvement / land reforms / soil conservation · Minor irrigation & watershed · Animal husbandry, dairying, poultry · Fisheries · Social/farm forestry · Minor forest produce · Small-scale & food-processing industries · Khadi (खादी), village & cottage industries · Rural housing · Drinking water · Fuel & fodder · Roads, culverts, bridges, ferries, waterways · Rural electrification · Non-conventional energy (गैर-पारंपरिक (वैकल्पिक) ऊर्जा स्रोत) · Poverty alleviation · Education (primary & secondary) · Technical/vocational education · Adult & non-formal education · Libraries · Cultural activities · Markets & fairs · Health & sanitation (PHCs) · Family welfare · Women & child development · Social welfare (incl. disabled) · Welfare of weaker sections (esp. SC/ST) · Public distribution system · Maintenance of community assets.

12th Schedule — 18 subjects (Municipalities)

Urban planning · Regulation of land-use & building construction · Economic & social development planning · Roads & bridges · Water supply · Public health, sanitation & solid waste · Fire services · Urban forestry & environment · Safeguarding weaker sections · Slum improvement · Urban poverty alleviation · Parks, gardens, playgrounds · Cultural, educational & aesthetic aspects · Burials / cremations · Cattle pounds; prevention of cruelty to animals · Vital statistics (births & deaths) · Public amenities (street lighting, parking, bus stops) · Regulation of slaughter houses & tanneries.

Count traps: 11th = **29** (not 22/24/32) · 12th = **18** (not 29).

PYQ — UPPCS Prelims 2019, Q29

How many items are there in the 11th Schedule of the Constitution of India?

A. 22 B. 24 C. 29 D. 32

Show answer

Ans: C — 29.